

During Phase, Two these individuals may not drive a motor vehicle:

1. With more than one passenger in the vehicle under the age of 21 who is not a family member
2. Between midnight and 5:00 a.m. unless the operation of the vehicle is necessary for the driver to work, to attend or participate in a school-related activity, or due to a medical emergency

All drivers who are under 18 years of age are restricted from using a wireless communication device, including a hands-free device, except in case of an emergency.

Provisional License

A provisional license is a driver license issued to persons 16 to 18 years of age that has the Phase Two GDL driving restrictions applied. The license will be marked “PROVISIONAL” and expire on the license holder’s 18th birthday. A person applying for a provisional license must:

1. Be at least 16 but not more than 18 years of age
2. Complete and pass a driver education course (a driver education course includes both the classroom and behind the wheel phases), vision, and driving exams
3. Have held a valid learner, hardship, or combination of learner and hardship license for at least six months
4. Meet all other requirements for a renewal driver license applicant

Out-of-State License Holders

Applicants who are at least 15 but less than 18 years of age and present a valid out-of-state instruction permit will be issued a Phase One learner license. Applicants who are at least 16 but less than 18 years of age and present a valid out-of-state driver license will be issued a Phase Two provisional license with passenger and time restrictions after successful completion of the driving exam. Applicants must meet all other requirements for a first-time (original) applicant.

All licenses issued to persons less than 21 years of age will be marked “UNDER 21”.

Classes of Driver Licenses

Class A, B, C, and M driver licenses are issued to individuals who are exempt from obtaining or not required to obtain a commercial driver license (CDL). Most non-commercial driver licenses issued to persons 18 years of age and older are valid for eight years and cost \$32 (a \$1 administrative fee will be added to in-person, telephone and online transactions). Some applicants receive licenses with shorter terms due to restrictions including, but not limited to, verification of lawful presence, sex offender registration requirements, or being 85 years of age or older.

Individuals who operate any of the following vehicles are exempt from obtaining a CDL but may need a Class A or Class B non-commercial driver license because the type of vehicle driven still meets the definition of a commercial motor vehicle. For more information on commercial motor vehicles and requirements for a CDL, please visit our website, <http://www.dps.texas.gov/DriverLicense/CommercialLicense.htm> or see the *Texas Commercial Motor Vehicle Drivers Handbook*. You may download the handbook online at <http://www.dps.texas.gov/internetforms/Forms/DL-7C.pdf>.

1. A fire-fighting or emergency vehicle necessary for the preservation of life or property or the execution of emergency governmental functions whether operated by an employee of a political subdivision or by a volunteer firefighter.
2. A military vehicle or a commercial motor vehicle when operated for military purposes by military personnel, members of the Reserves and National Guard on active duty, including personnel on full-time National Guard duty, personnel on part-time training, and National Guard military technicians.
3. A recreational vehicle driven for personal use.
4. A vehicle that is owned, leased, or controlled by an air carrier and is driven or operated exclusively by an employee of the air carrier only on the premises of an airport, on service roads to which the public does not have access.
5. A vehicle used exclusively to transport seed cotton modules or cotton burs.
6. A former military vehicle as defined by Texas Transportation Code 504.402(i) that is operated intrastate and not driven by an individual for compensation or in furtherance of a commercial enterprise.
7. A covered farm vehicle as defined by 49 CFR Section 390.5 that is used to transport agricultural commodities, livestock, machinery or supplies to or from a farm or ranch, not used in for-hire motor carrier operations and if under 26,001 pounds is operated anywhere in the United States and if over 26,001 pounds is operated within 150 miles of the farm or ranch.
8. A vehicle controlled and operated by a farmer:
 - a. Used to transport agricultural products, farm machinery, or farm supplies to or from a farm
 - b. Not used in the operation of a common or contract motor carrier, or
 - c. Used within 150 miles of the person’s farm.

Class A Driver License

A Class A driver license permits a person to drive: